

SOTOMAYOR, J., dissenting

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This Court has not defined precisely what kind of governmental property interest (if any) is necessary for a public forum to exist. See *Cornelius v. NAACP Legal Defense & Ed. Fund, Inc.*, 473 U.S. 788, 801 (1985) (“a speaker must seek access to public property or to private property dedicated to public use”). But see *ante*, at 813, n. 3 (appearing to reject the phrase “private property dedicated to public use” as “passing dicta”). I assume for the sake of argument in this case that public-forum analysis is inappropriate where the government lacks a “significant property interest consistent with the communicative purpose of the forum.” *Denver Area Ed. Telecommunications Consortium, Inc. v. FCC*, 518 U.S. 727, 829 (1996) (THOMAS, J., concurring in judgment in part and dissenting in part).

Such an interest is present here. As described above, New York State required the City to obtain public-access channels from Time Warner in exchange for awarding a cable franchise. See *supra*, at 820. The exclusive right to use these channels (and, as necessary, Time Warner’s infrastructure) qualifies as a property interest, akin at the very least to an easement.

The last time this Court considered a case centering on public-access channels, five Justices described an interest like the one here as similar to an easement. Although JUSTICE BREYER did not conclude that a public-access channel was indeed a public forum, he likened the cable company’s agreement to reserve such channels “to the reservation of a public easement, or a dedication of land for streets and parks, as part of a municipality’s approval of a subdivision of land.” *Denver Area*, 518 U.S., at 760–761 (joined by Stevens and Souter, JJ.). And Justice Kennedy observed not only that an easement would be an appropriate analogy, *id.*, at 793–794 (opinion concurring in part, concurring in judgment in part, and dissenting in part, joined by GINSBURG, J.), but also that “[p]ublic access channels meet the definition of a

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public forum,” *id.*, at 791, “even though they operate over property to which the cable operator holds title,” *id.*, at 792; see also *id.*, at 792–793 (noting that the entire cable system’s existence stems from the municipality’s decision to grant the franchise). What those five Justices suggested in 1996 remains true today.

“A common idiom describes property as a ‘bundle of sticks’—a collection of individual rights which, in certain combinations, constitute property.” *United States v. Craft*, 535 U. S. 274, 278 (2002). Rights to exclude and to use are two of the most crucial sticks in the bundle. See *id.*, at 283. “State law determines . . . which sticks are in a person’s bundle,” *id.*, at 278, and therefore defining property itself is a state-law exercise.⁴ As for whether there is a sufficient property interest to trigger First Amendment forum analysis, related precedents show that there is.

As noted above, there is no disputing that Time Warner owns the wires themselves. See *Turner*, 512 U. S., at 628. If the wires were a road, it would be easy to define the public’s right to walk on it as an easement. See, e. g., *In re India Street*, 29 N. Y. 2d 97, 100–103, 272 N. E 2d 518, 518–520 (1971). Similarly, if the wires were a theater, there would be no question that a government’s long-term lease to use it would be sufficient for public-forum purposes. *Southeastern Promotions*, 420 U. S., at 547, 555. But some may find this case more complicated because the wires are not a road or a theater that one can physically occupy; they are a conduit for transmitting signals that appear as television channels. In other words, the question is how to understand the right to place content on those channels using those wires.

⁴The parties have not pointed this Court to any New York law definitively establishing the status of the channels. But even if there were uncertainty about the status of the channels under New York law, that would not be a reason to resolve the case against respondents (plaintiffs below) at the motion-to-dismiss stage. See *infra*, at 830, n. 9, 831–832.

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The right to convey expressive content using someone else's physical infrastructure is not new. To give another low-tech example, imagine that one company owns a billboard and another rents space on that billboard. The renter can have a property interest in placing content on the billboard for the lease term even though it does not own the billboard itself. See, e.g., *Naegele Outdoor Advertising Co. of Minneapolis v. Lakeville*, 532 N. W. 2d 249, 253 (Minn. 1995); see also *In re XAR Corp. v. Di Donato*, 76 App. Div. 2d 972, 973, 429 N. Y. S. 2d 59, 60 (1980) ("Although invariably labeled 'leases,' agreements to erect advertising signs or to place signs on walls or fences are easements in gross").

The same principle should operate in this higher tech realm. Just as if the channels were a billboard, the City obtained rights for exclusive use of the channels by the public for the foreseeable future; no one is free to take the channels away, short of a contract renegotiation. Cf. *Craft*, 535 U. S., at 283. The City also obtained the right to administer, or delegate the administration of, the channels. The channels are more intangible than a billboard, but no one believes that a right must be tangible to qualify as a property interest. See, e.g., *Armstrong v. United States*, 364 U. S. 40, 48–49 (1960) (treating destruction of valid liens as a taking); *Adams Express Co. v. Ohio State Auditor*, 166 U. S. 185, 219 (1897) (treating "privileges, corporate franchises, contracts or obligations" as taxable property). And it is hardly unprecedented for a government to receive a right to transmit something over a private entity's infrastructure in exchange for conferring something of value on that private entity; examples go back at least as far as the 1800s.⁵

⁵ For example, during the railroad boom, governments obtained not only physical easements in favor of the public over tracks used, owned, and managed by private railroads, including rights to use the rails and all relevant "fixtures and appurtenances," see, e.g., *Lake Superior & Mississippi R. Co. v. United States*, 93 U. S. 442, 444, 453–454 (1877), but also, in

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I do not suggest that the government always obtains a property interest in public-access channels created by franchise agreements. But the arrangement here is consistent with what the Court would treat as a governmental property interest in other contexts. New York City gave Time Warner the right to lay wires and sell cable TV. In exchange, the City received an exclusive right to send its own signal over Time Warner's infrastructure—no different than receiving a right to place ads on another's billboards. Those rights amount to a governmental property interest in the channels, and that property interest is clearly "consistent with the communicative purpose of the forum," *Denver Area*, 518 U. S., at 829 (opinion of THOMAS, J.). Indeed, it is the right to transmit the very content to which New York law grants the public open and equal access.

2

With the question of a governmental property interest resolved, it should become clear that the public-access channels are a public forum.⁶ Outside of classic examples like sidewalks and parks, a public forum exists only where the government has deliberately opened up the setting for speech by at least a subset of the public. *Cornelius*, 473 U. S., at 802. "Accordingly, the Court has looked to the policy and practice of the government," as well as the nature of the property itself, "to ascertain whether it intended to designate a place not traditionally open to assembly and debate as a public forum." *Ibid.* For example, a state college might make its facilities open to student groups, or a municipality might open up an auditorium for certain public meetings. See *id.*, at 802–803.

some situations, rights to transmit personnel and freight for free or at reduced rates, *Ellis, Railroad Land Grant Rates, 1850–1945*, 21 J. Land & P. U. Econ. 207, 209, 211–212 (1945).

⁶Though the majority disagrees on the property question, I do not take it seriously to dispute that this point would follow. See *ante*, at 816–818.

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The requisite governmental intent is manifest here. As noted above, New York State regulations require that the channels be made available to the public “on a first-come, first-served, nondiscriminatory basis.” 16 N. Y. Codes, Rules & Regs. § 895.4(c)(4); see also §§ 895.4(c)(8)–(9). The State, in other words, mandates that the doors be wide open for public expression. MNN’s contract with Time Warner follows suit. App. 23. And that is essentially how MNN itself describes things. See Tr. of Oral Arg. 9 (“We do not prescreen videos. We—they come into the door. We put them on the air”).⁷ These regulations “evidenc[e] a clear intent to create a public forum.” *Cornelius*, 473 U. S., at 802.

B

If New York’s public-access channels are a public forum, it follows that New York cannot evade the First Amendment by contracting out administration of that forum to a private agent. When MNN took on the responsibility of administering the forum, it stood in the City’s shoes and became a state actor for purposes of 42 U. S. C. § 1983.

This conclusion follows from the Court’s decision in *West v. Atkins*, 487 U. S. 42 (1988). The Court in *West* unanimously held that a doctor hired to provide medical care to state prisoners was a state actor for purposes of § 1983. *Id.*, at 54; see also *id.*, at 58 (Scalia, J., concurring in part and concurring in judgment). Each State must provide medical care to prisoners, the Court explained, *id.*, at 54, and when a State hires a private doctor to do that job, the doctor becomes a state actor, “‘clothed with the authority of state law,’” *id.*, at 55. If a doctor hired by the State abuses his role, the harm is “caused, in the sense relevant for state-

⁷ New York may be uncommon (as it often is); public-access channels in other States may well have different policies and practices that make them more like government speech than constitutional forums. See Brief for Respondents 30–31; Brief for American Civil Liberties Union et al. as *Amici Curiae* 13–15. New York’s scheme, however, is the only one before us.

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action inquiry,” by the State’s having incarcerated the prisoner and put his medical care in that doctor’s hands. *Ibid.*

The fact that the doctor was a private contractor, the Court emphasized, made no difference. *Ibid.* It was “the physician’s function within the state system,” not his private-contractor status, that determined whether his conduct could “fairly be attributed to the State.” *Id.*, at 55–56. Once the State imprisoned the plaintiff, it owed him duties under the Eighth Amendment; once the State delegated those duties to a private doctor, the doctor became a state actor. See *ibid.*; see also *id.*, at 56–57. If the rule were any different, a State would “‘be free to contract out all services which it is constitutionally obligated to provide and leave its citizens with no means for vindication of those rights, whose protection has been delegated to ‘private’ actors, when they have been denied.’” *Id.*, at 56, n. 14.

West resolves this case. Although the settings are different, the legal features are the same: When a government (1) makes a choice that triggers constitutional obligations, and then (2) contracts out those constitutional responsibilities to a private entity, that entity—in agreeing to take on the job—becomes a state actor for purposes of § 1983.⁸

Not all acts of governmental delegation necessarily trigger constitutional obligations, but this one did. New York State regulations required the City to secure public-access channels if it awarded a cable franchise. 16 N. Y. Codes, Rules &

⁸ Governments are, of course, not constitutionally required to open prisons or public forums, but once they do either of these things, constitutional obligations attach. The rule that a government may not evade the Constitution by substituting a private administrator, meanwhile, is not a prison-specific rule. More than 50 years ago, for example, this Court made clear in *Evans v. Newton*, 382 U. S. 296 (1966), that the city of Macon, Georgia, could not evade the Fourteenth Amendment’s Equal Protection Clause by handing off control of a park to a group “of ‘private’ trustees.” *Id.*, at 301. Rather, “the public character of [the] park require[d] that it be treated as a public institution subject to the command of the Fourteenth Amendment, regardless of who ha[d] title under state law.” *Id.*, at 302.

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Regs. § 895.4(b)(1). The City did award a cable franchise. The State’s regulations then required the City to make the channels it obtained available on a “first-come, first-served, nondiscriminatory basis.”⁹ § 895.4(c)(4). That made the channels a public forum. See *supra*, at 828. Opening a public forum, in turn, entailed First Amendment obligations.

The City could have done the job itself, but it instead delegated that job to a private entity, MNN. MNN could have said no, but it said yes. (Indeed, it appears to exist entirely to do this job.) By accepting the job, MNN accepted the City’s responsibilities. See *West*, 487 U.S., at 55. The First Amendment does not fall silent simply because a government hands off the administration of its constitutional duties to a private actor.

III

The majority acknowledges that the First Amendment could apply when a local government either (1) has a prop-

⁹ Accordingly, this is not a case in which a private entity has been asked to exercise standardless discretion. See, e.g., *American Mfrs. Mut. Ins. Co. v. Sullivan*, 526 U.S. 40, 52 (1999). Had New York law left MNN free to choose its favorite submissions, for example, a different result might well follow.

MNN has suggested to this Court that its contract with Time Warner allows it “to curate content, to decide to put shows together on one of our channels or a different channel.” Tr. of Oral Arg. 6; see Reply Brief 9. But MNN’s contract cannot defeat New York law’s “first-come, first-served, nondiscriminatory” scheduling requirement, 16 N. Y. Codes, Rules & Regs. § 895.4(c)(4), and the discretion MNN asserts seems to be at most some limited authority to coordinate the exact placement and timing of the content it is obliged to accept indiscriminately, see Tr. of Oral Arg. 25–26. That seems akin to the authority to make reasonable time, place, and manner provisions, which is consistent with administering any public forum. See *Ward v. Rock Against Racism*, 491 U.S. 781, 791 (1989). As for any factual assertions about how the channels are operated in practice, this case arises from MNN’s motion to dismiss, so the facts asserted against it must be accepted as true. *Hernández v. Mesa*, 582 U.S. 548, 550 (2017) (*per curiam*). And any uncertainty about the facts or New York law, in any event, would be a reason to vacate and remand, not reverse.

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erty interest in public-access channels or (2) is more directly involved in administration of those channels than the City is here. *Ante*, at 817. And it emphasizes that it “decide[s] only the case before us in light of the record before us.” *Ibid*. These case-specific qualifiers sharply limit the immediate effect of the majority’s decision, but that decision is still meaningfully wrong in two ways. First, the majority erroneously decides the property question against the plaintiffs as a matter of law. Second, and more fundamentally, the majority mistakes a case about the government choosing to hand off responsibility to an agent for a case about a private entity that simply enters a marketplace.

A

The majority’s explanation for why there is no governmental property interest here, *ante*, at 816–818, does not hold up. The majority focuses on the fact that “[b]oth Time Warner and MNN are private entities”; that Time Warner “owns its cable network, which contains the public access channels”; and that “MNN operates those public access channels with its own facilities and equipment.” *Ante*, at 817; see also *ante*, at 818. Those considerations cannot resolve this case. The issue is not who owns the cable network or that MNN uses its own property to operate the channels. The key question, rather, is whether the channels themselves are purely private property. An advertiser may not own a billboard, but that does not mean that its long-term lease is not a property interest. See *supra*, at 826.

The majority also says that “[n]othing in the record here suggests that a government . . . owns or leases either the cable system or the public access channels at issue here.” *Ante*, at 817. But the cable system itself is irrelevant, and, as explained above, the details of the exchange that yielded Time Warner’s cable franchise suggest a governmental property interest in the channels. See *supra*, at 824–827.

The majority observes that “the franchise agreements expressly place the public access channels ‘under the juris-

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diction' of MNN," *ante*, at 817, but that language simply describes the City's appointment of MNN to administer the channels. The majority also chides respondents for failing to "alleg[e] in their complaint that the City has a property interest in the channels," *ibid.*, but, fairly read, respondents' complaint includes such an assertion.¹⁰ In any event, any ambiguity or imprecision does not justify resolving the case against respondents at the motion-to-dismiss stage. To the extent the majority has doubts about respondents' complaint—or factual or state-law issues that may bear upon the existence of a property interest—the more prudent course would be to vacate and remand for the lower courts to consider those matters more fully. In any event, as I have explained, the best course of all would be to affirm.

B

More fundamentally, the majority's opinion erroneously fixates on a type of case that is not before us: one in which a private entity simply enters the marketplace and is then

¹⁰ Respondents alleged that the City "created an electronic public forum" and "delegat[ed] control of that forum to" MNN. App. 17. They further alleged that "[a]lmost all cable franchise agreements require cable operators—as a condition for easements to use the public rights-of-way—to dedicate some channels for programming by the public," *id.*, at 20, invoked the state regulations requiring the designation of a channel here, *id.*, at 21, and then alleged that the City's franchise agreement "requires Time Warner to set aside" the channels, *id.*, at 22. While the complaint does not use the words "property interest," those allegations can be read to include the idea that whatever was "set aside" or "dedicate[d]," *id.*, at 20, 22, qualified as a sufficient City property interest to support respondents' assertion of a public forum. Cf. *People v. Brooklyn & Queens Transit Corp.*, 273 N. Y. 394, 400–401, 7 N. E. 2d 833, 835 (1937) (discussing dedications of property to public use); cf. also *Denver Area Ed. Telecommunications Consortium, Inc. v. FCC*, 518 U. S. 727, 794 (1996) (Kennedy, J., concurring in part, concurring in judgment in part, and dissenting in part) (noting this theory).

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subject to government regulation. The majority swings hard at the wrong pitch.

The majority focuses on *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345 (1974), which is a paradigmatic example of a line of cases that reject §1983 liability for private actors that simply operate against a regulatory backdrop. *Jackson* emphasized that the “fact that a business is subject to state regulation does not by itself convert its action into that of the State.” *Id.*, at 350; accord, *ante*, at 815. Thus, the fact that a utility company entered the marketplace did not make it a state actor, even if it was highly regulated. See *Jackson*, 419 U.S., at 358; accord, *ante*, at 815. The same rule holds, of course, for private comedy clubs and grocery stores. See *ante*, at 812.¹¹

¹¹ There was a time when this Court’s precedents may have portended the kind of First Amendment liability for purely private property owners that the majority spends so much time rejecting. See *Marsh v. Alabama*, 326 U.S. 501, 505–509 (1946) (treating a company-owned town as subject to the First Amendment); *Food Employees v. Logan Valley Plaza, Inc.*, 391 U.S. 308, 315–320, and n. 9, 325 (1968) (extending *Marsh* to cover a private shopping center to the extent that it sought to restrict speech about its businesses). But the Court soon stanching that trend. See *Lloyd Corp. v. Tanner*, 407 U.S. 551, 561–567 (1972) (cabining *Marsh* and refusing to extend *Logan Valley*); *Hudgens v. NLRB*, 424 U.S. 507, 518 (1976) (making clear that “the rationale of *Logan Valley* did not survive” *Lloyd*). Ever since, this Court has been reluctant to find a “public function” when it comes to “private commercial transactions” (even if they occur against a legal or regulatory backdrop), see, e.g., *Flagg Bros., Inc. v. Brooks*, 436 U.S. 149, 161–163 (1978), instead requiring a closer connection between the private entity and a government or its agents, see, e.g., *Brentwood Academy v. Tennessee Secondary School Athletic Assn.*, 531 U.S. 288, 298 (2001) (nonprofit interscholastic athletic association “pervasive[ly] entwine[d]” with governmental institutions and officials); *Lugar v. Edmondson Oil Co.*, 457 U.S. 922, 942 (1982) (state-created system “whereby state officials [would] attach property on the *ex parte* application of one party to a private dispute”); see also *Burton v. Wilmington Parking Authority*, 365 U.S. 715, 723–725 (1961) (restaurant in municipal parking garage partly maintained by municipal agency); accord, *ante*, at 809–810. *Jack-*

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The *Jackson* line of cases is inapposite here. MNN is not a private entity that simply ventured into the marketplace. It occupies its role because it was asked to do so by the City, which secured the public-access channels in exchange for giving up public rights of way, opened those channels up (as required by the State) as a public forum, and then deputized MNN to administer them. That distinguishes MNN from a private entity that simply sets up shop against a regulatory backdrop. To say that MNN is nothing more than a private organization regulated by the government is like saying that a waiter at a restaurant is an independent food seller who just happens to be highly regulated by the restaurant's owners.

The majority also relies on the Court's statements that its "public function" test requires that a function have been "traditionally and exclusively performed" by the government. *Ante*, at 809 (emphasis deleted); see *Jackson*, 419 U. S., at 352. Properly understood, that rule cabins liability in cases, such as *Jackson*, in which a private actor ventures of its own accord into territory shared (or regulated) by the government (*e. g.*, by opening a power company or a shopping center). The Court made clear in *West* that the rule did not reach further, explaining that "the fact that a state employee's role parallels one in the private sector" does not preclude a finding of state action. 487 U. S., at 56, n. 15.

When the government hires an agent, in other words, the question is not whether it hired the agent to do something that can be done in the private marketplace too. If that were the key question, the doctor in *West* would not have been a state actor. Nobody thinks that orthopedics is a function "traditionally exclusively reserved to the State," *Jackson*, 419 U. S., at 352.

The majority consigns *West* to a footnote, asserting that its "scenario is not present here because the government has

son exemplifies the line of cases that supplanted cases like *Logan Valley*—not cases like this one.

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no [constitutional] obligation to operate public access channels.” *Ante*, at 810, n. 1. The majority suggests that *West* is different because “the State was constitutionally obligated to provide medical care to prison inmates.” *Ante*, at 810, n. 1. But what the majority ignores is that the State in *West* had no constitutional obligation to open the prison or incarcerate the prisoner in the first place; the obligation to provide medical care arose when it made those prior choices.

The City had a comparable constitutional obligation here—one brought about by its own choices, made against a state-law backdrop. The City, of course, had no constitutional obligation to award a cable franchise or to operate public-access channels. But once the City did award a cable franchise, New York law required the City to obtain public-access channels, see *supra*, at 820, and to open them up as a public forum, see *supra*, at 827–828. That is when the City’s obligation to act in accordance with the First Amendment with respect to the channels arose. That is why, when the City handed the administration of that forum off to an agent, the Constitution followed. See *supra*, at 828–830.¹²

The majority is surely correct that “when a private entity provides a forum for speech, the private entity is not ordinarily constrained by the First Amendment.” *Ante*, at 812. That is because the majority is not talking about *constitutional* forums—it is talking about spaces where private entities have simply invited others to come speak. A comedy

¹² *Jackson v. Metropolitan Edison Co.*, 419 U. S. 345 (1974), by contrast, exemplifies a type of case in which a private actor provides a service that there is no governmental obligation to provide at all. See *id.*, at 353 (no state requirement for government to provide utility service); see also, e. g., *Hudgens*, 424 U. S. 507 (shopping center). In *West v. Atkins*, 487 U. S. 42 (1988), by contrast, the prison was obligated to provide healthcare in accordance with the Eighth Amendment to its prisoners once it incarcerated them, and here, the City was required to provide a public forum to its residents in accordance with the First Amendment once it granted the cable franchise. See *supra*, at 828–830.

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club can decide to open its doors as wide as it wants, but it cannot appoint itself as a government agent. The difference is between providing a service of one's own accord and being asked by the government to administer a constitutional responsibility (indeed, here, existing to do so) on the government's behalf.¹³

To see more clearly the difference between the cases on which the majority fixates and the present case, leave aside the majority's private comedy club. Imagine instead that a state college runs a comedy showcase each year, renting out a local theater and, pursuant to state regulations mandating open access to certain kinds of student activities, allowing students to sign up to perform on a first-come, first-served basis. Cf. *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U.S. 819 (1995). After a few years, the college decides that it is tired of running the show, so it hires a performing-arts nonprofit to do the job. The nonprofit prefers humor that makes fun of a certain political party, so it allows only student acts that share its views to participate. Does the majority believe that the nonprofit is indistinguishable, for purposes of state action, from a private comedy club opened by local entrepreneurs?

I hope not. But two dangers lurk here regardless. On the one hand, if the City's decision to outsource the channels to a private entity did render the First Amendment irrelevant, there would be substantial cause to worry about the potential abuses that could follow. Can a state university evade the First Amendment by hiring a nonprofit to appor-

¹³ Accordingly, the majority need not fear that "all private property owners and private lessees who open their property for speech [c]ould be subject to First Amendment constraints." *Ante*, at 812. Those kinds of entities are not the government's agents; MNN is. Whether such entities face "extensive regulation" or require "government licenses, government contracts, or government-granted monopolies," *ante*, at 814, 815, is immaterial, so long as they have not accepted the government's request to fulfill the government's duties on its behalf.

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tion funding to student groups? Can a city do the same by appointing a corporation to run a municipal theater? What about its parks?

On the other hand, the majority hastens to qualify its decision, see *ante*, at 810, n. 1, 818, and to cabin it to the specific facts of this case, *ante*, at 818. Those are prudent limitations. Even so, the majority's focus on *Jackson* still risks sowing confusion among the lower courts about how and when government outsourcing will render any abuses that follow beyond the reach of the Constitution.

In any event, there should be no confusion here. MNN is not a private entity that ventured into the marketplace and found itself subject to government regulation. It was asked to do a job by the government and compensated accordingly. If it does not want to do that job anymore, it can stop (subject, like any other entity, to its contractual obligations). But as long as MNN continues to wield the power it was given by the government, it stands in the government's shoes and must abide by the First Amendment like any other government actor.

IV

This is not a case about bigger governments and smaller individuals, *ante*, at 818; it is a case about principals and agents. New York City opened up a public forum on public-access channels in which it has a property interest. It asked MNN to run that public forum, and MNN accepted the job. That makes MNN subject to the First Amendment, just as if the City had decided to run the public forum itself.

While the majority emphasizes that its decision is narrow and factbound, *ibid.*, that does not make it any less misguided. It is crucial that the Court does not continue to ignore the reality, fully recognized by our precedents, that private actors who have been delegated constitutional responsibilities like this one should be accountable to the Constitution's demands. I respectfully dissent.

REPORTER'S NOTE

Orders commencing with May 28, 2019, begin with page 1024. The preceding orders in 587 U.S., from March 26 through May 24, 2019, were reported in Part 1, at 901–1024. These page numbers are the same as they will be in the bound volume, thus making the *permanent* citations available upon publication of the preliminary prints of the United States Reports.

May 24, 28, 2019

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No. 18A1166. CHABOT ET AL. *v.* OHIO A. PHILIP RANDOLPH INSTITUTE ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Southern District of Ohio, case No. 1:18-CV-00357, entered May 3, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

No. 18A1170. MICHIGAN SENATE ET AL. *v.* LEAGUE OF WOMEN VOTERS OF MICHIGAN ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Eastern District of Michigan, case No. 2:17-CV-14148, entered April 25, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

No. 18A1171. CHATFIELD ET AL. *v.* LEAGUE OF WOMEN VOTERS OF MICHIGAN ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Eastern District of Michigan, case No. 2:17-CV-14148, entered April 25, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

MAY 28, 2019

Certiorari Granted—Reversed. (See *Box v. Planned Parenthood of Ind. and Ky., Inc.*, 587 U. S. 490 (2019) (*per curiam*).)

Miscellaneous Orders

No. 18A296. BARNES *v.* COMMISSION FOR LAWYER DISCIPLINE OF THE STATE BAR OF TEXAS. Application to file petition for writ of certiorari in excess of the page limitation, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. 18M162. RANDOLPH *v.* WETZEL, SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL.; and

No. 18M163. BENHAM *v.* HAGEN. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 18–556. KANSAS *v.* GLOVER. Sup. Ct. Kan. [Certiorari granted, 587 U. S. 918.] Motion of petitioner to dispense with printing joint appendix granted.

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No. 18–8060. SOLBERG *v.* FIRST NATIONAL BANK & TRUST CO. OF WILLISTON ET AL. Sup. Ct. N. D. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [587 U. S. 937] denied.

No. 18–8061. GRIGSBY *v.* BALTAZAR, WARDEN. C. A. 10th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [587 U. S. 916] denied. JUSTICE GORSUCH took no part in the consideration or decision of this motion.

No. 18–9057. IN RE KAUFMAN. Petition for writ of habeas corpus denied.

No. 18–8929. IN RE FLANDERS. Petition for writ of mandamus denied.

Certiorari Granted

No. 17–1678. HERNANDEZ ET AL. *v.* MESA. C. A. 5th Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 885 F. 3d 811.

Certiorari Denied. (See also *Box v. Planned Parenthood of Ind. and Ky., Inc.*, 587 U. S. 490 (2019) (*per curiam*).)

No. 18–803. DOLIN *v.* GLAXOSMITHKLINE, LLC, FKA SMITH-KLINE BEECHAM CORP. C. A. 7th Cir. Certiorari denied. Reported below: 901 F. 3d 803.

No. 18–891. JIM *v.* UNITED STATES; and

No. 18–895. MICCOSUKEE TRIBE OF INDIANS OF FLORIDA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 891 F. 3d 1242.

No. 18–923. CARTER, NEXT FRIEND OF A. D. ET AL., ET AL. *v.* SWEENEY, ASSISTANT SECRETARY OF BUREAU OF INDIAN AFFAIRS, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 823.

No. 18–937. MANRIQUEZ *v.* DIAZ, ACTING SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION. Sup. Ct. Cal. Certiorari denied.

No. 18–1022. MURPHY *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

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No. 18–1225. *MATSIBORCHUK v. HOLCOMBE*. C. A. 2d Cir. Certiorari denied. Reported below: 747 Fed. Appx. 875.

No. 18–1231. *XIU JAIN SUN v. OHENE ET AL.* App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied.

No. 18–1235. *RIBAKOFF v. CITY OF LONG BEACH, CALIFORNIA, ET AL.* Ct. App. Cal., 2d App. Dist., Div. 9. Certiorari denied. Reported below: 27 Cal. App. 5th 150, 238 Cal. Rptr. 3d 81.

No. 18–1236. *HIRAN ET AL. v. DEUTSCHE BANK NATIONAL TRUST CO. ET AL.* Sup. Ct. Tex. Certiorari denied.

No. 18–1238. *GOUNDER v. PROGRESSIVE CREDIT UNION ET AL.* Ct. App. N. Y. Certiorari denied. Reported below: 32 N. Y. 3d 1040, 113 N. E. 3d 454.

No. 18–1242. *GLENN v. NORDIC SERVICES, INC.* Ct. App. Wash. Certiorari denied. Reported below: 3 Wash. App. 2d 1032.

No. 18–1261. *COMANCHE NATION OF OKLAHOMA v. ZINKE, SECRETARY OF THE INTERIOR, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 768.

No. 18–1263. *BRAUN v. DEPARTMENT OF THE INTERIOR ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 18–1271. *WHITE ET AL. v. CHEVRON CORP. ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 453.

No. 18–1291. *THURMAN ET AL. v. JUDICIAL CORRECTION SERVICES, INC., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 733.

No. 18–1293. *EVERGREEN FREEDOM FOUNDATION, DBA FREEDOM FOUNDATION v. WASHINGTON.* Sup. Ct. Wash. Certiorari denied. Reported below: 192 Wash. 2d 782, 432 P. 3d 805.

No. 18–1302. *COHEN, CHAPTER 7 TRUSTEE v. CHERNUSHIN.* C. A. 10th Cir. Certiorari denied. Reported below: 911 F. 3d 1265.

No. 18–1305. *O’NEILL v. UNUM LIFE INSURANCE COMPANY OF AMERICA.* C. A. 6th Cir. Certiorari denied.

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No. 18–1310. *CLEMENT v. DURBAN ET AL.* Ct. App. N. Y. Certiorari denied. Reported below: 32 N. Y. 3d 337, 115 N. E. 3d 614.

No. 18–1314. *MEADOR ET AL. v. APPLE, INC.* C. A. 5th Cir. Certiorari denied. Reported below: 911 F. 3d 260.

No. 18–1322. *ALLIANCE TO END CHICKENS AS KAPOROS ET AL. v. NEW YORK CITY POLICE DEPARTMENT ET AL.* Ct. App. N. Y. Certiorari denied. Reported below: 32 N. Y. 3d 1091, 114 N. E. 3d 1070.

No. 18–1324. *WATTS ET UX. v. ENTERGY ARKANSAS, INC.* Ct. App. Ark. Certiorari denied. Reported below: 2018 Ark. App. 539, 561 S. W. 3d 774.

No. 18–1325. *VOGT v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 18–1336. *REED v. UNITED STATES*; and

No. 18–9001. *REED v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 908 F. 3d 102.

No. 18–1370. *BURKE ET AL. v. DEUTSCHE BANK NATIONAL TRUST CO.* C. A. 5th Cir. Certiorari denied. Reported below: 902 F. 3d 548.

No. 18–7139. *GIPSON v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 364.

No. 18–7500. *MANN v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 899 F. 3d 898.

No. 18–7536. *REEVES v. VANNOY, WARDEN.* Sup. Ct. La. Certiorari denied. Reported below: 2018–0270 (La. 10/15/18), 254 So. 3d 665.

No. 18–7581. *ERWIN v. WARDEN, FEDERAL CORRECTIONAL INSTITUTION COLEMAN-LOW.* C. A. 11th Cir. Certiorari denied.

No. 18–7599. *MORENO ORNELAS v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 906 F. 3d 1138.

No. 18–7652. *ANDERSON v. COLORADO.* Ct. App. Colo. Certiorari denied.

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No. 18–7868. *BURGETT v. GENERAL STORE NO. TWO, INC., DBA MARSH’S SUNFRESH MARKET, ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 727 Fed. Appx. 898.

No. 18–7961. *MARTINKO v. NEW HAMPSHIRE.* Sup. Ct. N. H. Certiorari denied. Reported below: 171 N. H. 239, 194 A. 3d 69.

No. 18–8202. *MARTINEZ ESCOBAR v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 909 F. 3d 228.

No. 18–8389. *WILSON v. FORD, WARDEN.* C. A. 11th Cir. Certiorari denied. Reported below: 898 F. 3d 1314.

No. 18–8453. *SPENCER v. FLORIDA.* Sup. Ct. Fla. Certiorari denied. Reported below: 259 So. 3d 712.

No. 18–8487. *NEYSMITH v. PENNSYLVANIA.* Super. Ct. Pa. Certiorari denied. Reported below: 192 A. 3d 184.

No. 18–8488. *MITCHELL v. PRECYTHE, DIRECTOR, MISSOURI DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 8th Cir. Certiorari denied.

No. 18–8505. *BURRELL v. LOUNGO ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 750 Fed. Appx. 149.

No. 18–8511. *CARLSON ET VIR v. PIPER, COMMISSIONER, MINNESOTA DEPARTMENT OF HUMAN SERVICES, ET AL.* Ct. App. Minn. Certiorari denied.

No. 18–8513. *HALPER v. PASSES.* Ct. App. Colo. Certiorari denied.

No. 18–8515. *DRAKE v. MURPHY, AUSTIN, ADAMS, SCHOENFELD, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 91.

No. 18–8517. *HALL v. SPRINT CORP.* C. A. 4th Cir. Certiorari denied. Reported below: 731 Fed. Appx. 228.

No. 18–8529. *SMITH v. ILLINOIS.* App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2018 IL App (4th) 150856–U.

No. 18–8530. *YOUNG v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.